

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Sh. Hari Kishan, Senior Prosecutor for SFIO along with
Sh. Lokender Singh Raghav, Standing Government Counsel for
the complainant -SFIO and Sh. Vishal Singh and Ms. Kajal
Soni, Legal Consultants

Accused Nos. **1** to **70** companies represented through accused
No.114 Rahul Virendra Modi who is in custody

Accused Nos. **71** to **78** companies, represented through
accused Sidharth Chauhan (No. **135**)

Accused No.**79** company, represented through accused
Vivek Hari Vyasi (No. **115**) (sought exemption today)who
is on interim bail.

Accused Nos. **80** company, represented through accused
Naveen Kumar (No. **139**).

Accused Nos. **81** and **82** companies, represented through
accused Surender Singh (No. 140) who is on interim bail
from Hon'ble Supreme Court

None for accused No.83 company

Accused Nos. **84** company, represented through accused
Abhya K. Shah(No.127), represented by Sh.Nitin Desodia,
Advocate (sought exemption today)

Accused Nos. **85** company, represented through accused
Jainam Rathod (No.130) on bail from Hon'ble Supreme
Court

Accused Nos. **86**, **87** and **88** companies, represented
through accused Ravi Tak (No. **166**)(sought exemption
today)

Accused No. **89** company, represented through accused
Raj Kumar Bohra (No. 171).

Accused Nos. **90** to **93** companies, represented through
accused Vivek Hari Vyasi (No.115)(sought exemption
today) who is on interim bail

Accused Nos. **94** to **97** companies, represented through
Shri Rahul, AR, in person

Accused Nos. **98** company, represented through Shri
Naresh Kumar, AR, in person

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Accused Nos. **99** and **100** companies, represented through accused Raj Kumar Modi (No. **176**) who is on interim bail from Hon'ble Supreme Court

None for accused No.**101** Alba Ploymers Ltd.

Accused No. **102** company, represented through Shri Deepak, AR, in person

Accused No. **103** company, represented through Shri Dharmender, AR, in person

Accused No. **104** company, represented through Shri Vicky, AR, in person

Accused No. **105** company represented through Shri Anoop, AR, in person

Accused No. **106** company represented through Shri Kashi Nath Jha, AR, in person

None for accused No. **107** company,

Accused No. **108** company, represented through Shri Jishan, AR, (sought exemption today)

Accused No. **109** company, represented through Shri Vikas Paul, AR, in person

Accused Nos. **110** company, represented through Shri Raju Yadav, AR in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR, in person

Accused No. **112** company, represented through Shri Devender Kumar, AR (sought exemption today)

Accused Vivek Harivyasi (No. **115**) on interim bail (sought exemption today), represented by Sh Vivek Tanwar, Advocate

Accused No.117 Priyanka Modi represented by Sh Manl Mittra, Advocate

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virendra Modi in custody, produced through VC by the concerned jail authorities

Accused No.**143**/Sudhir Punia in custody, produced through VC from Bhondsi Jail

Accused No.**177**/Rajiv Kumar Rana in custody, but not produced by the concerned jail authorities

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Accused No. **120**/Vibhav Lodha who is on bail in this case but custody in other case, not produced

Accused No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No.**126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No.**134**/Vivek Purohit, No. **142**/Bharat Das Vaishnav, who are on bail in this case but custody in other case, produced before the Court through VC by concerned jail authority.

Accused Surender Singh (No. **140**), Vijay Shukla (No. **149**), Raj Kumar Modi (No. **176**), on interim bail.

Accused Joydeep Das Gupta (No.**144**), Lovekush Sharma (No.**145**), Avanish Kumar Tyagi (No.**148**) and Poonam Madan(No. **151**) on bail, but granted personal exemption(s) till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Leena Hariviyasi (No. **146**) on bail, exempted till further orders vide order dated 03.05.2024

Accused Bharat Kumar Mardia (No. **154**) on bail, exempted permanently, represented by Sh. Peeyush Jain, Advocate.

Accused Praveen Maheshwari (No.**156**) and Rajeev Maheshwari (No.**157**) on bail, but exempted from personal appearance till further order(s) vide order 31.01.2020, represented through Shri Piyush Jain, Advocate

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, but granted permanent exemption vide order(s) dated 04.09.2019.

Accused Paramvir Singh Sangwan(No.**174**) on bail, but granted personal exemption till further order vide order dated 19.02.2021, represented by Shri Dinesh Kumar, Advocate.

Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) permanently exempted till further orders vod 22.11.2019, represented by Sh Nitin Desodya, Advocate

Accused Paras Bolia (No.121) on bail (sought exemption today), represented by Sh Nitin Saini, Advocate

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Accused Jainam Rathod (No.130) on bail in person

Accused Prakash Chandra Purohit(No.133) on bail (sought exemption today),represented by Shri Vivek Tanwar, Advocate

Accused Akshat Singh (No. **136**), on bail in person represented by Shri Prashant Yadav, Advocate

Accused Nazima Khan (No. 152) on bail(sought exemption today), represented by Shri Arun Sharma, Advocate

Accused Shiv Raj Sharma (No.160) (sought exemption today),represented by Shri Apoorv Yadav, Advocate

Accused Aditya Sarda (No. **141**) on bail in person represented by Shri Karan Kumar Gogna, Advocate

Accused Megha Chauhan No.(No. 163) (sought exemption today), accused Indu Tak (No. 164) (sought exemption today), accused Ravi Tak (No. 166) (sought exemption today) and accused Saurabh Tak (No. 172) on bail(sought exemption today), represented by Sh Neeraj Dev Gaur, Advocate

Accused Abhay K. Shah (No. **127**) on bail (sought exemption today) represented by Sh Karamveer, Advocate

Accused Manish Chaudhary(No.128), on bail (sought exemption today) represented by Sh Vivek Tanwar, Advocate

Accused Naveen Choudhary(No. 162). Shyam Bihari Gupta (No.165), Sudhir Mehta(No. 170) and Mahesh Kumar Tak (No. 187) on bail (sought exemption today) represented by Sh Niraj Dev Gaur, Advocate

Accused Nitin Rathore(No. 116), Jinender Vyas(No. 118), Deepak Shrimali(No.129), Gurbir Singh Sandhu(No.138), Naveen Kumar(No.139), Vimal Sanwarmal Sharma(No.147), Shabir Khan (No. 153), Raj Kumar Bohra (No.171), Mahesh Dutt Sharma(No.178), on bail, in person.

Accused No.173 Peeyush Aggarwal on bail, represented by Sh Prashant Yadav, Advocate

Accused Vinay Kumpawat (No. **119**) already declared proclaimed person vod **27.07.2022** and accused Shinder Pal Singh (No. **137**) already declared proclaimed person vod 03.05.2024

*Proceedings qua accused **Mahendra Kumar Tak (155)** and **Vijay Jindal (175)** stood abated vide order dated 25.03.2022.*

Shri Sameer Pandey, Advocate filed fresh power of attorney on behalf of accused No.116 Nitin Rathod, accused No.147 Vimal Sanwarmal Sharma and accused No.149 Vijay Sukla

Learned Senior Prosecutor placed on record death certificate of accused No.122 Virender Modi, thereby reflecting that the said accused expired on 18.05.2022. In view of the same, proceedings qua accused No.122 Virender Modi stand abated.

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virendra Modi, who are in custody in this case, produced by the concerned jail authorities. They be produced through VC before the Court on 18.01.2025, if they remain in custody till then.

Accused No.**143**/Sudhir Punia in custody, produced through VC from Bhondsi Jail and he be produced through VC on the adjourned date.

Accused No.**177**/Rajiv Kumar Rana in custody, but not produced by the concerned jail authorities. Production warrants of said accused be also issued for the adjourned date.

Accused No. **120**/Vibhav Lodha who is on bail in this case, but in custody in other case, not produced by concerned jail authority. Let his production warrant be issued to the concerned jail authority to produce him before the Court through video conferencing on 18.01.2025.

Accused No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No.**126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No.**134**/Vivek Purohit, No. **142**/Bharat Das Vaishnav, who are on bail in this case, but custody in other case, produced before the Court through video conferencing and they

be produced before the Court on the adjourned date through video conferencing, if they remain in custody till then.

Separate applications seeking exemption from personal appearance(s) filed on behalf of AR of accused company No.84 and for himself i.e. accused No.127/ Abhay K.Shah, accused No.115 Vivek Harivyasi, accused No.121 Paras Bolia, accused no.128 Manish Chaudhary, accused No.133 Prakash Chander Purohit, accused No.160 Shiv Raj Sharma, accused No.162 Naveen Chaudhary, accused No.163 Megha Chauhan, accused No.164 Indu Tak, accused No.165 Shyam Bihari Gupta, accused No.166 Ravi Tak, accused No.170 Sudhir Mehta, accused No.172 Saurabh Tak and accused No.187 Mahesh Tak. The applications are supported by respective affidavit(s). For the reasons mentioned in the applications, the same stand allowed for today only. All these accused are directed to come present in person on the adjourned date except in emergent situation(s).

AR Jishan, representing accused company i.e. 108 and AR Devender Kumar, representing accused company i.e. accused No.112 have also sought exemptions. For the reason(s) mentioned in the application(s), the said application(s) stand allowed for today only.

Arguments on two separate applications, seeking permanent exemption from appearance(s) before the court, moved on behalf of accused no. 117/Priyanka Modi and accused No.133 Prakash Chandra Purohit, not advanced. Arguments on these applications shall be heard on the adjourned date.

Reply to the application moved under Section 88 Cr.P.C/Section 91 BNSS, 2023 on behalf of accused No.124/Neha Ghemawat and accused No.132/Meenakshi Modi, has been filed by learned Senior Prosecutor. Copy supplied to counsel for the accused, who seeks adjournment to address arguments. Arguments on the said application shall also be heard on the adjourned date. Needless to mention that on

the last date of hearing, it was also directed that in case there is any restraint order passed by any Court of law qua the presence of these two accused before this Court, then the accused/their counsel are under obligation to bring on record certified copies of such order(s) on the adjourned date, failing which both the accused shall have to appear in person before the court, however neither any order has been brought on record nor these accused appeared before the Court. Be that as it may, in the interest of justice, one last opportunity is granted to these accused to bring on record any order passed in their favour, failing which it shall be assumed that these accused are deliberately avoiding presence before this court and further action as per law shall be initiated.

On the last date of hearing, accused Siddharth Chauhan (No. 135) was directed to bring on record certified copies of order(s) passed in his favour by Hon'ble High Court, as it was apprised by the Senior Prosecutor that said accused had earlier approached Hon'ble High Court qua initiation of PO proceedings against him, wherein some interim order was passed, however today none has appeared on behalf of said accused, but still as a matter of abundant caution and in the interest of justice, one last opportunity is granted to said accused to bring on record any order passed in his favour, failing which it shall be presumed that said accused is deliberately avoiding presence before this Court and further action as per law shall be initiated. In the meanwhile, learned Senior Prosecutor is also directed to apprise the Court about status of the petition moved by said accused before the Hon'ble High Court, so that there is no violation of any order passed by Hon'ble High Court.

Learned Senior Prosecutor submits that due to some inadvertance accused No.160/Shiv Raj Sharma could not come present to get his statement recorded before learned Duty Magistrate, in terms of order passed on the last date of hearing and that he is ready to appear before learned Duty Magistrate. If said accused has moved an application to

become approver, then complainant/SFIO is at liberty, if it deems so appropriate, to get statement of said accused recorded before learned Duty Magistrate on any working day by forwarding such application as per law and as and when such statement is recorded/put up before this Court, then further order as per law shall be passed on the pending application.

Learned Senior Prosecutor is directed to bring on record amended title, thereby reflecting the names of the persons who have been granted pardon, as prosecution witness, as per the order(s) passed by this Court.

Date of order: 13.11.2024

naveen

Jagdeep Singh
ASJ/Gurugram
UID No.HR0125